

TORMEY, et al. v. JENNINGS, et al.

22CV46038

**PLAINTIFFS' MOTION FOR LEAVE TO AMEND COMPLAINT
(TRIAL SETTING CONFERENCE)**

This is a quiet title action involving an easement for ingress and egress between two adjoining parcels. Before the Court is plaintiffs' motion for leave to amend the complaint. (Additionally, the court will reset Trial Confirmation and Court Trial dates.)

Courts have long exercised liberality in permitting amendments to pleadings, particularly amendments to answers. (*Permalab-Metalab Equipment Corp. v. Maryland Cas. Co.* (1972) 25 Cal.App.3rd 465. 472.)

In this case, plaintiffs have submitted a copy of the proposed Verified First Amended Complaint (FAC) and argue that indispensable parties must be added. Additionally, through the discovery process, plaintiffs have learned facts supporting a cause of action for an easement by necessity. The FAC introduces two new causes of action (quiet title and declaratory relief) based on easement by necessity. The defendants have not provided any persuasive reasons for denying the amendment.

Plaintiffs' Motion for Leave to Amend Complaint is **GRANTED**.

Regarding trial dates, the matter currently has the following schedule:

- Friday, April 5, 2024: Due date for trial briefs, exhibit/witness lists, and pre-trial motions.
- Tuesday, April 9, 2024: Pre-trial conference (remote appearances are acceptable).
- Wednesday, April 17, 2024: First day of bench trial at 8:30 AM in Department 2.
- Thursday, April 18, 2024: Second day of bench trial at 1:30 PM in Department 2.

Based on both the addition of new parties in the FAC all these dates are vacated and will be reset at a Trial Setting Conference on July 16, 2024, at 11:30 a.m. in Dept. 2.

The Clerk shall provide notice of this Ruling to the parties forthwith. The FAC is deemed filed as of the date of the signing of a formal Order. Plaintiff to prepare a formal Order pursuant to CRC 3.1312 in conformity with this Ruling.